

Pledge of Secrecy Loaned Employees

Human Resources

This declaration sets out in detail the duty of confidentiality for all temporary staff. In particular, its purpose is to raise awareness of compliance with the duty of confidentiality as well as the provisions of the international KPMG Risk Management Manual and the Acceptable Use Policy.

The undersigned undertakes to keep confidential all information and personal data of which they become aware in connection with the temporary employment relationship and which is not publicly known or generally accessible. In particular, this includes all information and personal data in oral, written, electronic or any other form concerning the companies within the KPMG global organization of independent firms, their employees and customers, and other third parties. The duty of confidentiality shall continue after termination of the temporary employment relationship.

In particular, the undersigned undertakes to:

- treat information as confidential and take all measures to maintain confidentiality that are reasonably necessary;
- to use confidential information solely in the course of their activities for KPMG;
- to inform all employees, auxiliaries and subcontractors who receive confidential information of their duties of confidentiality in relation to the information; and
- not to use or disclose at KPMG any confidential or protected information from previous employers or other third parties without their express consent.

In addition to the contractual confidentiality obligation, the undersigned must comply with all legal confidentiality obligations. The undersigned is aware that claims for damages by KPMG, customers or other injured parties are to be expected in the event of a breach of the duty of confidentiality. Furthermore, the undersigned is aware that they may be punished with a fine, incarceration or imprisonment if they:

- disclose manufacturing or trade secrets (see Art. 162 Swiss Penal Code);
- exploit or communicate knowledge of insider information (see Art. 154 and 155 FMIA);
- disclose confidential information entrusted to them in their capacity as an auditor, lawyer, agent of a bank, agent of an exchange or a securities dealer or of which they became aware in this capacity (cf. Art. 47 Swiss Banking Act, Art. 147 FMIA, Art. 321 Swiss Penal Code);
- intentionally disclose confidential personal data of which they have become aware in the course of their profession that requires knowledge of such data (cf. Art. 62 FADP); and/or
- perform prohibited acts for a foreign state (see Art. 271 Swiss Penal Code).

In the event of breaches of the duty of confidentiality, KPMG AG expressly reserves the right to terminate the temporary employment contract without notice, to claim damages and to take legal action.

Place/Date: _____ Signature: _____

First name/surname in block capitals:
